

1.

CASE #	CASE NAME	HEARING NAME
CVME2506583	KOLSTAD VS CASA DEL REY MOBILE HOMES ESTATES, L.P.	MOTION TO BIFURCATE

Tentative Ruling: CONTINUED to 8/14/26.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509966	NICHOLSON VS MMJ CONSTRUCTION INC.	DEMURRER

Tentative Ruling: SUSTAIN as to the first, second, fourth, and fifth causes of action. Overrule the demurrer as to the third cause of action. Thirty days leave to amend.

GRANT Nicholson's requests for judicial notice.

This is an employment action. Plaintiffs Bradley Nicholson, Christine Mascarena, and Jerry Dalton Edler filed the operative Complaint against Defendants MMJ Construction, Inc., Judy Lee Bailey-Savage, Brett Lee Baily, and Freedom Ranch & Rescue, Inc. alleging: (1) failure to pay prevailing wages; (2) failure to pay overtime; (3) failure to reimburse expenses; (4) failure to provide compliant rest breaks; (5) failure to provide compliant meal periods; and (6) unfair business practices.

Judy Lee Bailey-Savage then filed a Cross-Complaint against Bradley Nicholson. The court previously sustained a demurrer to the Cross-Complaint with leave to amend.¹ Bailey-Savage amended the pleading and the operative First Amended Cross-Complaint (FACC) alleges: (1) implied indemnity; (2) equitable indemnity; (3) breach of contract; (4) contribution; and (5) declaratory relief. The FACC alleges Bailey-Savage and Nicholson are both directors and officers of MMJ Construction, Inc. (MMJ). (FACC ¶¶1, 2.) Bailey-Savage alleges she is the owner and she entered into a verbal agreement with Nicholson to turn the company over to him. Bailey-Savage alleges during this transition time, Nicholson made decisions and performed actions as an office or director with the company, including hiring the other two plaintiffs as employees. (FACC ¶¶22-23.) The FACC also alleges Nicholson repudiated the agreement to take over the company by lying about his position with the company to the Division of Workers' Compensation Insurance after he totaled the company car and made a workers' compensation claim in which he denied being a principal of the company. (¶25.)

Nicholson brings the instant demurrer to the FACC. Nicholson argues that the deficiencies of the original Cross-Complaint remain. Nicholson argues the amendments made to the pleading do not save the remaining causes of action. Nicholson argues the statute of fraud bars the breach of contract claim. Nicholson argues the citations in the pleading do not support the causes of action.

¹ The Court sustained the demurrer with leave to amend as to the first, second, third, fifth, and sixth causes of action. The Court sustained the demurrer without leave to amend as to the fourth cause of action for breach of fiduciary duty. The FACC no longer contains a breach of fiduciary duty claim.

Bailey-Savage opposes the motion. Bailey-Savage argues the FACC is not uncertain and sufficiently alleges the stated causes of action. Bailey-Savage argues the amendments to the pleading resolve the issues raised by the court in ruling on the prior demurrer.

CCP §430.41 and §435.5 require a meet and confer process via **phone or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP §430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP §430.41(a)(3).)

The demurrer is accompanied by the declaration of Alexander Rusnak who sent a meet and confer letter to opposing counsel on April 15, 2026. (Rusnak Decl. ¶8.) Rusnak did not receive a response, so he sent a follow-up email on April 21, 2026. (¶10.) This does not satisfy the meet and confer requirement.

Nevertheless, the merits are discussed below.

Nicholson asks the court to take judicial notice of the court's ruling on the demurrer to the Cross-Complaint. Request is granted per Evidence Code §452(d).

The court previously sustained the demurrer to the original Cross-Complaint for these claims noting "being personally liable to a plaintiff is not the same as being required to indemnify another defendant." (2/19/26 Minute Order.) Bailey-Savage relied on Labor Code §558.1, which permits an owner, officer, director, or managing agent to be held personally liable if they violate a Labor Code provision. However, Bailey-Savage did not provide any authority to support her assertion that Nicholson would owe a joint obligation to the harmed Plaintiffs, meaning he would be required to indemnify Bailey-Savage. (Ibid.)

Bailey-Savage added language to paragraph 2 of the FACC: "Bradley Nicholson was responsible for setting [Mascarena and Edler's] schedule and overseeing the construction work they performed and ensuring compliance with the requirements of Industrial Wage Order 16 related to the work performed by Christine Mascarena, and Jerry Dalton Edler." (FACC ¶2.) Bailey-Savage argues, again without supporting, if she "is held liable to Plaintiffs Mascarena or Edler, it will only be because of the acts of Nicholson and indemnity may be owed by Nicholson to Cross-Complainant." (Opp. p.7:2-4.) Bailey-Savage also cites *Grande v. Eisenhower Medical Center* (2022) 13 Cal.5th 313 but notes that case did not decide the issue of indemnity obligation between employers. (Opp. p.7:16-17.)

Bailey-Savage has not sufficiently amended the FACC to establish these causes of action. Her argument in Opposition to the motion is not based on any authority this court must follow. As such, the demurrer is sustained.

"A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach and damage to plaintiff resulting therefrom." (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal. App. 4th 1004, 1031.) A contract will be enforced if it is sufficiently definite for the court to ascertain the parties' obligations and to determine whether there has been a breach.

(*Bustamante v. Intuit Inc.* (2006) 141 Cal. App. 4th 199, 209.) To plead a cause of action based on a written contract, a plaintiff may attach a copy of the written contract and incorporate it by reference or plead the terms verbatim or the legal effect of the contract. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

The FACC alleges Nicholson and Bailey-Savage entered into a verbal agreement under which Nicholson was to take over Bailey-Savage's role at MMJ Construction and Bailey-Savage would remain with the company during the transition period to help train Nicholson for his new role. (¶22.) Nicholson acknowledges the FACC now alleges he departed the company, took company employees and property, and left jobs unsupervised. (¶25.) Bailey-Savage alleges she had to stay with the company longer than expected in order to make sure the jobs were staffed. (¶25.)

Nicholson argues that even though the FACC now alleges facts sufficient to demonstrate his alleged breach of the agreement, the claim is still deficient. Specifically, Nicholson argues the agreement is barred by the statute of frauds and is still uncertain because essential terms are not included in the pleading. Nicholson argues the agreement is barred by the statute of limitations because it could not be completed within one year. (Civil Code §1624(a)(1).) However, the language in the FACC does not establish the agreement could not be completed within one year. No dates are provided. This is not a basis on which to sustain the demurrer.

Second, Nicholson argues the agreement bars the statute of fraud because it involves the transfer of a corporate ownership interest. Nicholson cites Civil Code 1624(a)(3), which applies the statute of frauds to a lease agreement for a period longer than one year or the sale of real property. It does not concern transfer of corporate interests. Nicholson also cites Corporations Code §166, but this section concerns distribution by a corporation to its shareholders. Nicholson has not provided any authority to support the contention that an agreement is barred by the statute of frauds if it concerns transfer of a corporate ownership interest. Furthermore, even if Nicholson had provided such authority, the FACC does not allege any transfer of ownership between the parties. Rather, the FACC alleges the parties entered into a verbal contract "with the intention of [Nicholson] take over [Bailey-Savage's] role at MMJ Construction." (¶22.) This does not allege the parties have exchanging any ownership interest in the company. Rather, the FACC alleges Nicholson was to take over Bailey-Savage's job. This is not a basis on which to sustain the demurrer.

Nicholson further argues that the FACC remains uncertain as essential terms are not pleaded. Nicholson argues the FACC does not allege any price, timeline for completion of training, ownership percentage to be transferred, mechanism of transfer, or any conditions on performance. It is not clear, though, that these are essential terms. The FACC alleges the parties had an agreement that Nicholson would take over Bailey-Savage's role at MMJ. Nicholson then allegedly breached that agreement when he left the company and took Mascarena and Edler with him. When he left the company, he took company property and forced Bailey-Savage to stay longer with the company than she had originally intended, which caused her harm. (¶25.) Ultimately, the FACC alleges a claim for breach of contract. Accordingly, the Demurrer is overruled.

Nicholson argues the court sustained the original demurrer because Bailey-Savage did not offer any authority establishing Nicholson owed a joint obligation to Plaintiffs of the same type as Bailey-Savage's, such that contribution could flow between them. The FACC adds citations to CCP §§875-876 and Civil Code §1432. CCP §875 provides for contribution among two or more defendants in a tort action. This is a labor and employment action, so it is not clear that this statute applies. Civil Code §1432 states: "a party to a joint, or joint and several obligations, who satisfies more than his share of the claim against all, may require a proportionate contribution from all the parties joined with him." A right of contribution is related to some former transactions, be it actual or implied, and may be the subject of an express contract. In the absence of an express contract the right may exist by operation of law, under which circumstance it exists as a complete legal entity only. (*Pacific Freight Lines v. Pioneer Express Co.* (1940) 39 Cal.App.2d 609.)

The mere citation to these code sections does not fix the deficiencies from the original Cross-Complaint. The Opposition does not explain how or why the allegations in the FACC are sufficient to sustain this cause of action.

The declaratory relief cause of action is derivative of the indemnity and contribution claims. Since those claims are insufficiently alleged, so is this claim.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510655	ANCHELOWITZ VS INLAND PSYCHIATRIC MEDICAL GROUP, INC.	DEMURRERS

Tentative Ruling: OVERRULE as to the 1st, 2nd, and 4th causes of action and SUSTAIN as to the third cause of action, with 20 days' leave to amend.

GRANT the motion to strike.

This is a medical malpractice litigation initiated on September 10, 2025, by Plaintiff Louis Anchelowitz against Inland Psychiatric Medical Group, Inc. ("IPMG"), Chika Ugwu, PMHNP ("Ugwu"), and Syam P. Kunam, M.D. ("Dr. Kunam"). Plaintiff alleges he sustained injuries while under the care of IPMG and its medical professionals, including Dr. Kunam. Prior to July 31, 2024, Plaintiff had no right arm nerve injury, no functional impairment of the right upper extremity, and no history of injection-related complications. Ugwu prescribed Uzedy injections for Plaintiff, which medical assistant Adrianna Montrose ("Montrose") administered on July 31, 2024, and medical assistant Summer Garcia ("Garcia") administered on September 3 and October 1, 2024. During the September 3, 2024, injection, Plaintiff experienced an immediate electric shock-like sensation radiating through the right arm, consistent with nerve contact. Although Plaintiff reported the pain, Garcia continued injection. Plaintiff reported pain from the injection on September 8, October 7, November 4, December 2, and January 11, 2025. Plaintiff alleges Defendants created inaccurate records relating to Plaintiff's injections and failed to correct the inaccuracies even after Plaintiff submitted corrections.

The operative SAC filed March 20, 2026, asserts causes of action for (1) Professional Negligence (against all Defendants), (2) Negligence (Supervision) against IPMG and